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File No.: EXP202313523

## RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following:

### FACTS

FIRST: On August 23, 2023, a complaint was filed with entry registration number REGAGE23e00056706504 and REGAGE23e00056861736 before the Spanish Agency for Data Protection against VODAFONE ESPAÑA, S.A.U. with NIF A80907397 (hereinafter, the complained party, VODAFONE or LOWI). The reasons for the complaint are as follows:

The complainant states that on August 10, 2023, their telephone line contracted with LOWI was blocked. Subsequently, they contacted the customer service of the complained party and were informed that a duplicate of the SIM card for their telephone line had been requested.

After informing LOWI that they had not requested such a duplicate, they were told that this had occurred immediately after a modification of the address and email associated with the line.

Along with the complaint, the following documentation is provided:

- Complaint dated August 11, 2023, filed with the National Police, Orense department, stating: "that the telephone line with number (...).
- Statement before the Metropolitan Police Region of Barcelona. Basic Police Area Sant Andreu, dated August 18, 2023, where the previous facts are stated and additional information regarding the initial complaint is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on October 11, 2023, as evidenced by the acknowledgment of receipt in the file.

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On November 13, 2023, a response was received by this Agency indicating that: "(...)".

THIRD: On November 23, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

VODAFONE makes the following statements:

1.- Regarding the reported facts:

Vodafone states that (...).

Prior to this access, there is no record in LOWI's internal systems of any irregular or improper access to the complainant's customer area. It has also been verified that it was not until the following day, August 10, 2023, that the SIM duplicate was activated.

On that same day, after LOWI became aware of the actions not recognized by the complainant, the telephone line was immediately blocked, without prejudice to the actions initiated by LOWI's Fraud Department to investigate the reported incident.

Subsequently, and once the facts were fully clarified and the line returned to the complainant, on

August 17, 2023, LOWI proceeded to reactivate the network service of the SIM card associated with the affected telephone line.

(...).

Thus, the information sent by VODAFONE addressed to the complainant was not received by them, but by the alleged fraudster, and the entity was unable to know that such communications were being received by a third party unrelated to its customer.

(...)

According to the complained party, customers have the responsibility to properly safeguard their personal data. To date, LOWI had not detected any unauthorized access by a third party in its internal systems or databases where the complainant's data is stored, nor any other incident that has resulted in the leakage of data or passwords of the complainant.

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Upon becoming aware of the facts, the qualification of the operation as fraudulent was managed and resolved on the same day that the claimant informed LOWI of the allegedly fraudulent nature of this action, automatically nullifying the operation carried out. Thus, the incident was resolved prior to the receipt of information requests from the Agency.

2.- Regarding the procedure for changing the access password to the private area, security measures applied, detailing whether, in addition to sending a link to the email provided in the personal area, any complementary action is taken, the representatives of the entity indicate that:

(...)

3.- Regarding the procedure for sending and delivering the physical SIM to the postal address.

Instructions for verification to the courier providing evidence of whether the following measures were complied with:

- Exclusive delivery was requested from Correos Express.
- The interested party was informed that the delivery would take place prior to it (expectation of having their ID).
- The delivery note contains the name, surname, and ID number of the interested party.
- The ID number was entered into the Correos Express delivery management application, validating the match.

The representatives of the entity indicate that LOWI requires all SIM duplicates to be delivered using the exclusive delivery method.

Transporters are required to deliver only to the service holder, requesting the ID, NIE, or passport of the interested party.

(...)

In case of error, the process cannot be completed, and consequently, the package cannot be delivered to the recipient.

LOWI has contracted the exclusive delivery transport service with the logistics operator CEVA Logistics ("CEVA").

In this regard, all shipments internally classified by LOWI with number 89 must follow an exclusive delivery method.

CEVA works with different transport companies for the delivery of these duplicates, in this case, Correos Express, and transfers and identifies the deliveries that must follow an exclusive delivery method. A screenshot of the delivery system in this specific case is provided.

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A screenshot of the delivery note is also provided, where the courier can be seen including the name and ID number of the claimant (in this case, the ID number is entered twice).

5.- Regarding the sending of the notice to the claimant's email before the delivery of the SIM.

(...)

6.- Regarding the procedure for reacting to the communication of a fraudulent SIM duplicate. Evidence and screenshots indicating the date on which they became aware of the incident and the date on which the claimant's SIM card was blocked.

The representatives of the entity indicate that upon any indication communicated of a fraudulent SIM duplicate by any of the clients, the immediate blocking of the SIM is carried out so that it cannot continue to be used.

Subsequently, the fraud teams analyze what happened and request supporting documentation of the incident, such as a police report.

In the present case, the SIM duplicate was blocked the following day, that is, on August 10, 2023.

There is a record in the systems of a call to Customer Service informing of the situation, and the agents proceeded to block it immediately.

Once reviewed by the fraud team, the claimant is marked with the fraud victim check, generating an alert in the systems that indicates the following message: "Client with Fraud Attempt: Do not make changes without strict security policy."

This prevents future fraud attempts against the same client. In parallel, the shipment of a new SIM to the client is processed so that they can recover their line. In any case, as soon as a new SIM duplicate has been received and activated, all previous ones automatically cease to be operational.

9.- Chronology of incidents

(...)

(...)

(...)

(...)

(...)

(...)

(...)

(...)

(...)

(...)

The entity provides a screenshot of all these incidents.

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## LEGAL GROUNDS

### I

#### Competence

In accordance with the functions conferred upon each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided for in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

### II

#### Lawfulness of Processing

Article 6 of the GDPR, which regulates the lawfulness of processing, establishes the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in paragraph f) of the first subsection shall not apply to processing carried out by public authorities in the performance of their tasks.

2. Member States may maintain or introduce more specific provisions to adapt the application of the rules of this Regulation with regard to processing for compliance with paragraph 1, letters c) and e), establishing more specific conditions."

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specific requirements for processing and other measures that ensure lawful and fair processing, including other specific situations of processing in accordance with Chapter IX.

3. The basis for the processing indicated in paragraph 1, letters c) and e), must be established by:

- a) Union Law, or
- b) the Law of the Member States applicable to the data controller.

The purpose of the processing must be determined in that legal basis or, in relation to the processing referred to in paragraph 1, letter e), it will be necessary for the performance of a task carried out in the public interest or in the exercise of public powers conferred on the data controller. This legal basis may contain specific provisions to adapt the application of the rules of this Regulation, among others: the general conditions governing the lawfulness of processing by the controller; the types of data subject to processing; the affected data subjects; the entities to which personal data may be communicated and the purposes of such communication; the limitation of purpose; the retention periods for the data, as well as the operations and procedures of processing, including measures to ensure lawful and fair processing, such as those relating to other specific situations of processing in accordance with Chapter IX. Union Law or the Law of the Member States will fulfill a public interest objective and will be proportional to the legitimate aim pursued.

4. When processing for a purpose other than that for which the personal data were collected is not based on the consent of the data subject or on Union Law or the Law of the Member States that constitutes a necessary and proportional measure in a democratic society to safeguard the objectives indicated in Article 23, paragraph 1, the data controller, in order to determine whether the processing for another purpose is compatible with the purpose for which the personal data were initially collected, shall take into account, among other things:

- a) any relationship between the purposes for which the personal data were collected and the purposes of the intended further processing;
- b) the context in which the personal data were collected, in particular regarding the relationship between the data subjects and the data controller;
- c) the nature of the personal data, in particular when special categories of personal data are processed, in accordance with Article 9, or personal data relating to criminal convictions and offenses,

in accordance with Article 10;

d) the possible consequences for the data subjects of the intended further processing;

e) the existence of appropriate safeguards, which may include encryption or pseudonymization."

III

### Security of Processing

Article 32 of the GDPR stipulates the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying probabilities and severity of risks to the rights and freedoms of individuals."

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In physical terms, the data controller and the data processor shall apply appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;

b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;

c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;

d) a process for regular verification, evaluation, and assessment of the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the adequacy of the level of security, particular consideration shall be given to the risks presented by the processing of data, particularly as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The data controller and the data processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data in accordance with the instructions of the controller, unless required to do so by Union or Member State law.

IV

### Statements of the Respondent

In this case, the claimant states that their identity has been impersonated to request a duplicate of the SIM card for the telephone line contracted with LOWI.

In response to the transfer and information actions carried out, this Agency has received a letter from the respondent in which, for the purposes relevant here, it states the following:

1.- For the duplication of the SIM card, a third party gained control of the claimant's email address.

2.- The channel through which the duplicate was processed was the Mi Lowi App. After correctly providing the access credentials (email address or mobile phone number and the established password), the third party requested a change of the email to an address that only they had access to.

3.- In the Mi Lowi application, the fraudster requested a password change and, through the new account, was able to access the password recovery email and enter the claimant's personal area in the Mi Lowi App. From this application, they requested the duplicate SIM card and modified the delivery address.

4.- The delivery procedure for the Duplicate requires that the person responsible for delivering the SIM card must verify the identity of the recipient, checking that the identifying data of their ID card matched those of the shipment. VODAFONE provides a screenshot of the delivery system in this specific case

and attaches a screenshot of the delivery receipt where the messenger included the name and ID document number of the claimant (in this case, the ID document number is entered twice).

5.- The SIM was immediately blocked.

6.- As a reinforcement measure, a two-factor authentication has been established in the private area.

V

#### Conclusion

From the investigative actions carried out, it follows that the respondent has carried out the steps provided by the entity itself for the duplication of the SIM card during the contracting process subject to this complaint. Among these steps are various verification acts in order to identify the requester, which have also been provided during the course of the proceedings. Likewise, the respondent has demonstrated the immediate blocking of the SIM, so that it cannot continue to be used. Consequently, from the facts stated in the complaint and the documentation provided, there are insufficient indications of a violation of data protection regulations by the respondent.

Thus, as it has not been possible to attribute responsibility for data processing in accordance with the aforementioned, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U. and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious appeal.

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administrative before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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